

**Memo.No.1994/SC.D/77-1, Genl.Admn. (SC.D) Dept., dt.07.10.1977 regarding advice of Vigilance Commission as to further action on Judgments.**

**Subject Heading : Judgments - Vigilance Commission's advice, not necessary**

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Ref : 1. Memo.No.1206/SC.D/71-3, G.A.(SC.D) Dept., dt.22.11.71.

2. From the Vigilance Commissioner Lr.No.3952/VC.C2/77-1.  
dt.08.08.77.

In the Memo. 1<sup>st</sup> cited among others, instructions were issued to the Director, Anti-Corruption Bureau that since the final reports in all the enquiries are received by the Government through the Vigilance Commission with its advice as to further action and since the Government acts on such advice, the Director, Anti-Corruption Bureau, should furnish to the Government in administrative department of Secretariat through the Vigilance Commission (with a copy to this Department) within three weeks after a case is acquitted in the Court together with the opinion of the Legal Advisor, a report as to whether there are grounds for appeal against acquittal. He was also requested to furnish a draft of the grounds also in cases where the case is fit for appeal.

2. In his letter 2<sup>nd</sup> cited, the Vigilance Commissioner has stated that it is not necessary for the Vigilance Commission to advise on the Judgments of the criminal courts and it is for the Government to take a decision as to further action to be taken in consultation with the Law Department and other Law Officers. He has also stated that it is enough for the Vigilance Commissioner to know what action the Government have taken when prosecution has been advised by the Commission, and if a copy of the final orders of the court and the Judgment is sent to the Vigilance Commission for its record. Therefore, the Vigilance Commission has suggested that necessary instructions may be issued to the Director, Anti-Corruption Bureau to send all such judgements direct to the administrative department concerned for taking necessary further action with a copy of the reference along with the Judgment to the Vigilance Commission.

3. The Government have considered the matter carefully and decided that it is enough if the copy of the Judgement in such cases with the views of the Director, Anti-Corruption Bureau is sent to the Secretary to Government in the administrative department with a copy of the letter and the Judgment copy to the Vigilance Commission and to this department. The Director, Anti-Corruption Bureau is therefore requested to take action accordingly in all such cases. The instructions issued in Government Memo. 1<sup>st</sup> cited should be deemed to have been modified to the extent indicated above.